



File No.: EXP202312989

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on July 26, 2023, with this Agency and the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 26, 2023, a complaint was submitted to this Agency by Mr. A.A.A. (hereinafter, the complainant) against Mr. B.B.B. (hereinafter, the respondent) for not having duly attended to the right of access to the data of his minor child.

The complainant states that his ex-wife, despite his refusal, enrolled their minor child in the Center (...), whose director is the respondent, during the summer months.

On July 11, 2023, the complainant requested information from the respondent regarding his child's attendance at the center (entry and exit times, activities performed, and whether he uses the school cafeteria), receiving a response indicating that no data could be provided without the authorization of the child's mother.

The complainant sent the center a copy of a court order dated November 7, 2022, which states that "(...) parental authority over the minor is attributed and exercised jointly by both spouses without exception, and custody of the minor is granted to Mrs. C.C.C.. (...)”

Finally, the respondent issued a certificate to the complainant stating that his child "(...) attends our center during the summer school, from 01/07/2023 to 28/07/2023, except for the days when custody belongs to the father according to the agreement.”

The complainant believes that the respondent is obliged to provide the requested data as he shares parental authority.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, without the respondent having submitted any response.

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THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the complainant's claims. Consequently, on October 26, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, to present any arguments deemed appropriate within ten working days.

The respondent stated, in summary, and as far as this procedure is concerned, that the complainant requested information about his child's attendance at the center, "(...) time during the month of July (only the time when custody belongs to the mother).” He indicates that "(...) Although he has parental authority, custody belongs to the mother, except for a few vacation days and some individual days per month. Therefore, during the period when custody belongs to the mother, she is the one who can and must decide where her child spends his time, as it is considered a non-important decision or a minor issue.”

“(...) The father has the possibility to be part of the more significant decisions, such as the choice of the school his child attends, but in our center, during the month of July, we conduct a summer school, which is merely assistive and recreational in nature, not regulated, like a summer camp, a playroom, etc.

Thus, the mother does not need the father's consent to enroll her child in our summer school (what she

could not do is require the father to cover the costs incurred by our services). This is what the lawyers explain to us.

With all this, we provide all the information to the father by phone regarding his child's status. And yet, he requests that we issue a certificate specifying his child's attendance at our school.

After consulting with the lawyer, we are told that we are not obliged to do so, but that if we want, we can. We decided to do it and delivered it to the father. And then, he requests another certificate with more detailed information about the cafeteria.

For our part, we understand that we are not obliged to do this, and that it is the mother, as indicated in the regulatory agreement, who must provide this information to the father. (...)”

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, he may formulate any arguments he deems appropriate, not having submitted any arguments within the established period.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on October 26, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted

in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

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Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the data subject may request the information referred to in the terms provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data

to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the rest of the issues raised by the parties.

In the case analyzed here, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the claimant exercised the right of access regarding their child's attendance at the center (time of entry and exit, activities performed, and whether they use the school cafeteria), and that the responding party issued a certificate stating that their child "(...) attends our center during the summer school, from 01/07/2023 to 28/07/2023, excluding the days for which custody belongs to the father according to the agreement."

Therefore, before addressing the substance of the matter, consideration must be given to the Civil Code, which in Title VII of Book I, Articles 154 and 156, regulates parental-child relationships, particularly regarding the parental authority of non-emancipated children, determining the following: "Article 154.

Non-emancipated children are under the parental authority of their parents.

Parental authority, as parental responsibility, shall always be exercised in the interest of the children, in accordance with their personality, and with respect for their rights, physical and mental integrity.

This function includes the following duties and powers:

1. To look after them, keep them in their company, feed them, educate them, and provide them with comprehensive training.
2. To represent them and manage their assets.
3. To decide the habitual residence of the minor, which may only be modified with the consent of both parents or, failing that, by judicial authorization.

If the children have sufficient maturity, they must always be heard before decisions affecting them are made, whether in contentious proceedings or by mutual agreement. In any case, it will be ensured that they can be heard under suitable conditions, in terms that are accessible, understandable, and adapted to their age, maturity, and circumstances, seeking the assistance of specialists when necessary.

Parents may, in the exercise of their function, seek the assistance of the authority."

"Article 156.

Parental authority shall be exercised jointly by both parents or by one alone with the express or tacit consent of the other. Acts performed by one of them in accordance with social usage and circumstances or in situations of urgent necessity shall be valid.

If a conviction has been issued and while the criminal responsibility has not been extinguished or a criminal proceeding has been initiated against one of the parents for infringing upon the life, physical integrity, freedom, moral integrity, or sexual freedom and indemnity of the common minor children, or for infringing upon the other parent, the consent of the latter shall suffice for the psychological care and assistance of the minor children, with the first parent being informed in advance.

The above shall also apply, even if no prior complaint has been filed, when the woman is receiving assistance from a specialized service for gender violence, provided that there is a report issued by that service certifying such a situation. If assistance is to be provided to children over sixteen years of age, the express consent of these children will be required in any case.

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In the event of disagreement in the exercise of parental authority, either parent may approach the judicial authority, which, after hearing both parties and the child if they have sufficient maturity and, in any case, if they are over twelve years old, will assign the decision-making power to one of the two

parents. If the disagreements are repeated or if there is any other cause that severely hinders the exercise of parental authority, it may be assigned wholly or partially to one of the parents or the functions inherent to its exercise may be distributed between them. This measure will remain in effect for the period set, which may never exceed two years. In the cases mentioned in the previous paragraphs, with respect to third parties acting in good faith, it will be presumed that each parent acts in the ordinary exercise of parental authority with the consent of the other. In the absence or due to the absence or impossibility of one of the parents, parental authority will be exercised exclusively by the other.

If the parents are living separately, parental authority will be exercised by the one with whom the child resides. However, the judicial authority, at the request of the other parent, may, in the interest of the child, assign parental authority to the requester to exercise it jointly with the other parent or distribute the functions inherent to its exercise between both.

In this case, the claiming party has submitted a judicial order dated November 7, 2022, in which provisional measures are approved that will govern family relations during the processing of their modification of measures process, and in which the ownership and exercise of parental authority of the minor is attributed jointly to both spouses without exception, while the custody of the minor is maintained with the mother.

Therefore, given that there is no knowledge that such provisional measures are no longer in effect as indicated in the submitted judicial order, the responding party must not only facilitate access to the minor's data to the claiming party but must also provide the information established in Article 15 of the GDPR.

Such provision also determines the modalities through which the right of access may be obtained. Regarding the modality of a copy, it is not specified that it must be certified.

Consequently, it is appropriate to uphold the claim presented.

It should be noted that any discrepancies that may exist between the parents of the minor must be resolved by the corresponding judicial instances, as this Agency lacks the authority to analyze and assess them.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge Mr. B.B.B. with NIF 44522896W, to send to the claiming party, within ten working days following the notification of this resolution, a certification that addresses the requested right or a reasoned denial indicating the causes for which the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months

from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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